



March 8, 2023

Representative Abdelnasser Rashid
242A-W Stratton Office Building
Springfield, IL 62706

Representative Lamont J. Robinson, Jr.
Chairperson of the Illinois Cybersecurity, Data Analytics, & IT Committee
286-S Stratton Office Building
Springfield, IL 62706

Representative Edgar Gonzalez, Jr.
Vice-Chairperson of the Illinois Cybersecurity, Data Analytics, & IT Committee
240-W Stratton Office Building
Springfield, IL 62706

RE: HB 3385 – Illinois “Data Privacy and Protection Act” - Oppose

Dear Representative Rashid, Chairperson Robinson, and Vice-Chairperson Gonzalez:

We write to respectfully request that you **reconsider HB 3385**, the “Illinois Data Privacy and Protection Act.”¹ We and the companies we represent, many of whom do substantial business in Illinois, strongly believe consumers deserve meaningful privacy protections supported by reasonable laws and responsible industry policies. However, HB 3385 is based on a 2022 federal legislative proposal that was the first of its kind and did not get the benefit of full consideration and vetting by both chambers of Congress. If enacted, HB 3385 would create significant impediments to commerce and impose onerous new restrictions on businesses of all kinds without creating commensurate or meaningful privacy protections for Illinois consumers.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of companies across the country. These companies range from small businesses to household brands, advertising agencies, and technology providers. Our combined membership includes more than 2,500 companies that power the commercial Internet, which accounted for 12 percent of total U.S. gross domestic product (“GDP”) in 2020.² Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with you further on issues with the bill outlined here.

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We and our members support protecting consumer privacy. We believe, however, that HB 3385 imposes requirements on entities doing business in the state that are out-of-step with other

¹ Illinois HB 3385 (Gen. Sess. 2023), located [here](#) (hereinafter, “HB 3385”).

² John Deighton and Leora Kornfeld, *The Economic Impact of the Market-Making Internet*, INTERACTIVE ADVERTISING BUREAU, 15 (Oct. 18, 2021), located at https://www.iab.com/wp-content/uploads/2021/10/IAB_Economic_Impact_of_the_Market-Making_Internet_Study_2021-10.pdf.



privacy laws and would unnecessarily impede Illinois residents from receiving helpful services and accessing useful information online. We therefore respectfully ask you to reconsider HB 3385. Again, we would welcome the opportunity to discuss these comments with you in greater detail.

Thank you in advance for your consideration of this letter.

Sincerely,

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